

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO

Case No. 11-CV-02557-CMA-CBS

EQUAL EMPLOYMENT OPPORTUNITY COMMISSION,

Plaintiff,

v.

BEVERAGE DISTRIBUTORS COMPANY, LLC

Defendant.

SPECIAL VERDICT FORM

We, the jury, present our Answers to Questions submitted by the Court, to which we have unanimously agreed:

Question No. 1: Did Plaintiff EEOC prove, by a preponderance of the evidence, the three elements of Claim 1 – Disability Discrimination as set forth in Instruction No. 15?

 X Yes No

Question No. 2: Did Plaintiff EEOC prove, by a preponderance of the evidence, the four elements of Claim 2 – Unlawful Use of Medical Examination as set forth in Instruction No. 16?

 Yes X No

If you answered "No" to both Questions 1 and 2, skip Questions No. 3, 4, 5, 6, 7 and 8, and sign the verdict form. If you answered "Yes" to either or both Questions 1 and 2, proceed to Question 3.

Question No. 3: Did Defendant Beverage Distributors prove, by a preponderance of the evidence, both elements of its affirmative defense that Mr. Sungaila's employment in the Night Warehouse position posed a direct threat to himself or other employees as set forth in Instruction No. 19?

____ Yes X No

If you answered "Yes" to Question No. 3, skip Questions No. 4, 5, 6, 7 and 8, and sign the verdict form. If you answered "No" to Question No. 3, proceed to Questions 4 - 8.

Question No. 4: Based on Instructions 23 and 24, what is the amount of economic damages and damages for emotional pain and mental anguish incurred as a result of Beverage Distributor's discrimination and/or misuse of the retaliation?

Back Pay: \$ 132,347.00
Emotional Pain and Mental Anguish Damages: \$ 0

Question No. 5: Did Beverage Distributors prove, by a preponderance of the evidence, that Mr. Sungaila failed to make reasonable efforts to reduce his damages for loss of back pay?

X Yes ____ No

If you answered "Yes" to Question No. 5, then proceed to Question No. 6. If you answered "No" to Question No. 5, then skip Question No. 6 and proceed to Question No. 7.

Question No. 6: By which amount do you reduce Mr. Sungaila's back pay?

\$ 102,1803.75

Question No. 7: Is Mr. Sungaila entitled to recover punitive damages from Beverage Distributors as set forth in Instruction No. 26?

____ Yes X No

If you answered "Yes" to Question No. 7, proceed to Question No. 8. If you answered "No" to Question No. 7, skip Question No. 8 and sign the Verdict Form.

Foreperson